

Fazil Husain v. The Managing Director & Ors.

High Court of Judicature at Allahabad · Division Bench · 31 May 2022 · Writ-C No. 4649 of 2022 · **Writ disposed; liberty to object under para 6.8; coercive stay eight weeks.**

HEADNOTE

Writ against a recovery citation for electricity dues of Rs. 1,44,028 was disposed without any opinion on merits. The consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, it is to be decided after hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Fazil Husain challenged a recovery citation dated 4 January 2021 issued by the power distribution corporation for electricity consumption dues of Rs. 1,44,028. He sought certiorari to quash the citation, a mandamus to decide his representation dated 21 October 2021, and an order restraining coercive recovery. Counsel for the corporation stated on instructions that the petitioner may file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

para 6.8 objection to recovery citation as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ against a recovery citation for electricity dues is disposed of with liberty to the consumer to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the concerned officer within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a recovery citation for electricity dues was disposed without merits adjudication by relegating the consumer to a para 6.8 objection, with a short coercive stay. ¶ 1

fresh-objection-under-clause-6.8 Liberty granted to file a fresh para 6.8 objection within four weeks, to be decided after hearing within the following four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND THE CLAIMED ELECTRICITY DUES OF RS. 1,44,028

Court expressly declined to express any opinion on merits. ¶ 1